

25STCV09500 25STCV09500

County: los-angeles

Division: Civil Law and Motion

Department: 730

Hearing date: 2026-08-04

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C730%2C08%2F04%2F2026

Source SHA-256: b0b5cfa093f37bacc86ba851d6e550529c9ab6ab22469825ac59ffa07c0972ed

Case Number: 25STCV09500 Hearing Date: August 4, 2026 Dept: 730

Superior Court of

California

County of Los Angeles

Department

730

BRENDA

KINNERY, et al.,

Plaintiffs,

vs.

GENERAL

MOTORS, LLC

Defendant.

Case No.:

25STCV09500

Hearing

Date:

August 4, 2026

ORDER

DENYING MOTION TO STAY THE PROCEEDINGS

I. BACKGROUND

Plaintiffs

Brenda Kinnery ("Brenda") and Craig Kinnery ("Craig") entered into a warranty contract with Defendant General Motors, LLC ("GM") regarding a 2016 Cadillac XTS ("subject vehicle"). The subject vehicle allegedly has defects and nonconformities making the car effectively worthless. GM allegedly failed to replace the vehicle or reimburse Plaintiffs. Plaintiffs sued GM for five causes of action, including violations of the Song-Beverly act.

On

June 22, 2026, Plaintiffs filed the instant motion to stay the proceedings. GM filed an opposition.

II. LEGAL STANDARD

A court ordinarily has inherent power, in its discretion, to stay proceedings when such a stay will accommodate the ends of justice. (OTO, L.L.C. v. Kho (2019) 8 Cal.5th 111, 141.) The power to stay proceedings is incidental to the power inherent in every court to control the disposition of the cause on its docket with the economy of time and effort for itself, for counsel, and for litigants. (Id.) Trial courts generally have inherent power to stay proceedings in the interest of justice and to promote judicial efficiency. (Freiberg v. City of Mission Viejo (1995) 33 Cal.App.4th 1484, 1489.)

III. DISCUSSION

Plaintiffs request the court stay the proceedings indefinitely pending the Second District Court of Appeal's resolution of Los Angeles Superior Court case no. B353231, Price v. General Motors. Plaintiffs argue that the appellate court is currently considering whether a manufacturer's post-filing election into the Song-Beverly Act's new procedural regime can retroactively time-bar a complaint already on file when the new statutes of repose and limitations took effect. Plaintiffs argue this is potentially relevant to this case and may result in a later revision or

reversal upon the appellate court issuing a ruling.

The Court first notes Plaintiffs' moving papers are entirely based upon three exhibits submitted with Plaintiffs' Declaration of Jacob Lister, all of which are court documents. Lister has not provided sufficient foundation to warrant acceptance of these exhibits or otherwise requested judicial notice of these documents. Therefore, it is improper of the Court to consider these exhibits absent a showing of good cause, pursuant to California Rules of Court rule 3.1306.

Even if the Court was to consider the attached exhibits, the Court does not find good cause to grant an indefinite stay. Generally speaking, trial courts have the power to issue stays to promote judicial efficiency and in the interest of justice. (Freiberg v. City of Mission Viejo (1995) 33 Cal.App.4th 1484, 1489.) There is no indication as to when the Court of Appeals will issue a ruling on Price, or if it will have any impact on this case; it is not within the interest of fairness or economy to identify delay because a case might impact a ruling at some unknown time. As Plaintiffs noted in their moving papers, if the Price ruling does impact the case, Plaintiffs may move to revise or reverse any contradictory ruling in this case. Therefore, there is also no indication of prejudice to Plaintiffs in the Court denying the request.

The Court denies the motion.

IV. CONCLUSION

Plaintiffs Brenda Kinnery and Craig Kinnery's motion to stay the proceedings is DENIED.

GM is ordered to give notice.

DATED:

August 4, 2026

Hon. Alexander C.D. Giza

Judge of the Superior Court

PLEASE TAKE NOTICE:

- Parties are encouraged to meet and confer after reading this tentative ruling to see if they can reach an agreement.
- If a party intends to submit on this tentative ruling, the party must send an email to the court at with the Subject line "SUBMIT" followed by the case number. The body of the email must include the hearing date and time, counsel's contact information, and the identity of the party submitting.
- Unless all parties submit by email to this tentative ruling, the parties should arrange to appear remotely (encouraged) or in person for oral argument. You should assume that others may appear at the hearing to argue.
- If the parties neither submit nor appear at hearing, the Court may take the motion off calendar or adopt the tentative ruling as the order of the Court. After the Court has issued a tentative ruling, the Court may prohibit the withdrawal of the subject motion without leave.